1 ETHICS IN HUMAN INTERFFACE

ESSENCE

- At its simplest, ethics is a system of moral principles. They affect how people make decisions and lead their lives. Ethics is concerned with what is good for individuals and society and is also described as moral philosophy. The term is derived from the Greek word ethos which can mean custom, habit, character or disposition. Ethics covers the following dilemmas:
    1. How to live a good life
    2. Our rights and responsibilities
    3. The language of right and wrong
    4. Moral decisions - what is good and bad?

- Our concepts of ethics have been derived from religions, philosophies and cultures. They infuse debates on topics like abortion, human rights and professional conduct.
- If ethical theories are to be useful in practice, they need to affect the way human beings behave. Some philosophers think that ethics does do this. They argue that if a person realises that it would be morally good to do something then it would be irrational for that person not to do it.
- But human beings often behave irrationally - they follow their 'gut instinct' even when their head suggests a different course of action. However, ethics does provide good tools for thinking about moral issues.
- Ethics provides us with a moral map, a framework that we can use to find our way through difficult issues. They offer us ethical rules and principles that enable us to take a cooler view of moral problems.
- Using the framework of ethics, two people who are arguing a moral issue can often find that what they disagree about is just one particular part of the issue, and that they broadly agree on everything else. That can take a lot of heat out of the argument, and sometimes even hint at a way for them to resolve their problem.
- Some philosophers go further and say that all ethics can do is eliminate confusion and clarify the issues. After that it's up to each individual to come to their own conclusions.

- Many people want there to be a single right answer to ethical questions. They find moral ambiguity hard to live with because they genuinely want to do the 'right' thing, and even if they can't work out what that right thing is, they like the idea that 'somewhere' there is one right answer. But often there isn't one right answer - there may be several right answers, or just some least worst answers - and the individual must choose between them.
- For others moral ambiguity is difficult because it forces them to take responsibility for their own choices and actions, rather than falling back on convenient rules and customs. But sometimes ethics doesn't provide people with the sort of help that they really want.
- Indeed more and more people think that for many ethical issues there isn't a single right answer - just a set of principles that can be applied to particular cases to give those involved some clear choices.
- **Ethics is about the 'other'** - Hand holding and supporting another hand. Ethics is concerned with other people. At the heart of ethics is a concern about something or someone other than ourselves and our own desires and self-interest. Ethics is concerned with other people's interests, with the interests of society, with God's interests, with "ultimate goods", and so on. So when a person 'thinks ethically' they are giving at least some thought to something beyond themselves.
- **Ethics as source of group strength -** One problem with ethics is the way it's often used as a weapon. If a group believes that a particular activity is "wrong" it can then use morality as the justification for attacking those who practice that activity. When people do this, they often see those who they regard as immoral as in some way less human or deserving of respect than themselves; sometimes with tragic consequences.
- Ethics is not only about the morality of particular courses of action, but it's also about the goodness of individuals and what it means to live a good life. Virtue Ethics is particularly concerned with the moral character of human beings.

APPROACHES TO ETHICS

A. Consequentialism (Utilitarian approach)

- Consequentialism refers to moral theories that hold that the consequences of a particular action form the basis for any valid moral judgment about that action. Thus, from a consequentialist standpoint, morally right action is one that produces a good outcome, or consequence. Jeremy Bentham and J.S. Mill are considered to be advocates of this theory. According to it, something is right mainly because it produces the right results. It produces maximum happiness for a maximum number of people. Here, ends are given importance.

- Jeremy Bentham talks of Individual Utility. An action is moral if pleasure derived from the action is more than the pain for an individual. On the other hand, J.S. Mills talks of Community or Social Utility which says that an action is moral if it has utility to society, i.e., the act should bring the greatest good for the greatest number. John Stuart Mill, in his exposition of hedonistic utilitarianism, proposed a hierarchy of pleasures, meaning that the pursuit of certain kinds of pleasure is more highly valued than the pursuit of other pleasures.

B. Non-Consequentialism (Deontological approach)

- According to this, the rightness or wrongness of an act, system of rules, etc., in no way depends on the (non-moral) goodness or badness of the consequences. (e.g., Kant's moral theory is anti-consequentialist). It depends upon the intrinsic moral worth of the decision irrespective of the consequences. Immanuel Kant is considered to be advocates of this theory.
- According to Kant, any act is considered ethical not because of the consequences it will cause but because of the rightness of the very act itself. Here, means are given importance and not ends. In fact, according to this theory, if means are a right end will inevitably be right.
- For example - Being honest is ethical not because it earns one more reliable friend in life, but because one must not be anything, but honest. One is honest because it is right, and not because it will give her/him anything in return.

Debate of Moral Subjectivism

- Moral relativism can be stated in two forms: moral subjectivism and cultural relativism. Moral subjectivism argues that in the sphere of human behaviour what is true for one individual is not true for everyone else or even for anyone else. In this view, right and wrong is a matter of personal opinion. There is no way in which we can evaluate the views on moral questions held by people. If X says that same sex marriage is abhorrent and Y says that it is eminently desirable, there is no way of settling the dispute. It is morally unacceptable to X and morally acceptable for Y. There are no objective criteria to which we can appeal for settling the dispute.
- Cultural relativism asserts that within a given culture there may be moral standards that are true for that culture. But there is no objective standard of morality which transcends individual cultures and which can serve as a basis for evaluating individual cultures. Cultural relativism is also known as conventional relativism.
- This view is widely prevalent among anthropologists, sociologists and others but not among philosophers. Cultural anthropology began at the Columbia University and its chief proponents are Franz Boas, Margaret Mead, Ruth Benedict and Melville Herskovits. These writers argue that various cultures of the world disagree on their conceptions of right and wrong. Some cultures practise polygamy whereas others condemn it. Eskimo culture permitted infanticide. This led cultural anthropologists to

conclude that there are no moral standards which transcend a culture and by which the standards of a culture can be judged.

- There may be moral truths within a society but they are relative to and valid for that culture. There are two ways of stating cultural relativism. One form is that what is considered as morality varies from culture to culture. The second form is that morality changes from society to society. These two formulations need to be considered against the following two positions.
    1. There is a universal standard of morality which transcends individual cultures and which enables us to judge the moral standards of any culture.
    2. There is no universal standard of morality by which we can judge the moral standards of individual cultures.

- According to (1), we can look at the practices of a culture and determine whether they correspond to the universal standard. If slavery or infanticide is practised in a culture, it can be regarded as failing to measure up to the universal standard of morality. According to (2), no such evaluation is possible.
- One needs to understand this debate and logically favour constitutional morality in form of ethics in public administration. It is over and above religious or individual morality.

DETERMINANTS OF ETHICS

- In the light of the above classification and sub -categorisation, determinants of ethics should be understood as varying according the dimension of ethics. for example, the determinants for meta ethics are different from the determinants of normative ethics.
- Nonetheless, certain common underlying features should be seen as follows:
    1. **The intention behind the actions -** The most important factor in judging the action on ethical ground is the intention of the actor behind the act. If the actor violated any of the ethical value, it would be judged as an unethical act. Whereas if it upholds any of ethical value, it will be treated as an ethical one. It is notable that intention acts as a determinant presupposing those human beings are free to take action. A similar point is highlighted by St. Aquinas in *Summa Theologica* where he argues that ethics in human actions is concerned with actions taken out of free will. He points out three main points
    2. **Involvement of knowledge –** It's an essential requirement since **we can't will** unless we first know it.
    3. **Voluntariness** – Action must proceed from will. It controls the performance of external actions—the will is the cause of our actions. For instance, if someone places a gun in my hand and pulls the trigger,

it is obvious that my will does not control or cause that action and therefore the shooting is not voluntary, thus not a human action.

4. **Free will** – Human beings have free will, that is, the capacity to act or not to act. It offers human beings to have choices.
5. **Society/Culture of the day:** Here the set of values as ethical value is decided by the values system the society or culture of the day holds as an ethical value. Another concrete form of these values is formalised and codified as law. It is enforceable through the institution of the state.
6. **Individual value system and beliefs:** Set of value the individual believes in also helps us to judge the action to be ethical or not. If it upholds any of ethical value according to that individual, it will be treated as ethical action.

- One needs to understand that these factors may not work in water tight separated silos but in tandem with each other.

CONSEQUENCES OF ETHICS

- Morality in human actions can be understood at two levels- At the level of individual and at the level of an organised group of individuals: society/nation/institutions/organisation. These levels share an intricate and intimate relation with one another.
    1. **At the level of individual:** It is argued that human beings have an inherent desire to be good. Morality acts as an instrument to manifest that goodness. As moral beings, human beings find themselves at peace and experience inner harmony when they act morally. It adds value to their meaning of life. Acting in a moral framework enhances quality of life for one self and such an individual can aim at maximum personality development through self-actualization. Moreover, such an individual is best suited to contribute and participate in the progress and development of society.
    2. **At the level of organised group of Individuals- Society/Nation/Institutions/Organisations:**
        i. **Integrity and Unity -** When individuals act in the larger framework of ethics, they develop a sense of solidarity with each other. Solidarity is manifested in form of coordination and cooperation which in turn is a result of rule-based order. Ethics establishes a system for individuals to act and expect other to act in well determined ways to achieve a common ideal. For example, DMRC metros and the stations are well disciplined and

they follow strict norms that all passengers have to follow. Consequently, it is well known that I will maintain proper queue before boarding, expecting the same from my fellow passengers and thus everybody can board or de-board without any hustle. Ethics creates rule-based systems characterised by the cooperation and coordination resulting in unity and integrity.

ii. **Realization of Equality, Liberty and Justice -** Ethics based systems form a quintessential condition to realise the idea of equality, liberty and justice. These ideals are in context of group of people. It is well known that individuals are born with varied capacities and yet they have to cooperate with one another in different ways in order to maximise their own personality development. For this they need autonomy to act according to their free will guided by ethical norms restricted only by the freedom of their fellow beings. Thus, liberty becomes essential. Similarly, by providing individuals equality of opportunities, they can participate in social, political and economic equality and there by aim at justice for everyone.

iii. **Antithetical to corruption-**Individuals acting in orientation of ethical framework would annihilate tendencies for corruption. Absence of corruption would make systems efficient and promote honesty and probity for all.

iv. **Quality of life-** An organised group of people oriented in rule-based systems, free of corruption, allowed with maximum liberty possible by presupposing their equality and aiming towards justice naturally creates a high quality of life. Societies can manifest inclusive and sustainable development with each individual aiming for their self-actualization. All of this possible due to morality in human actions.

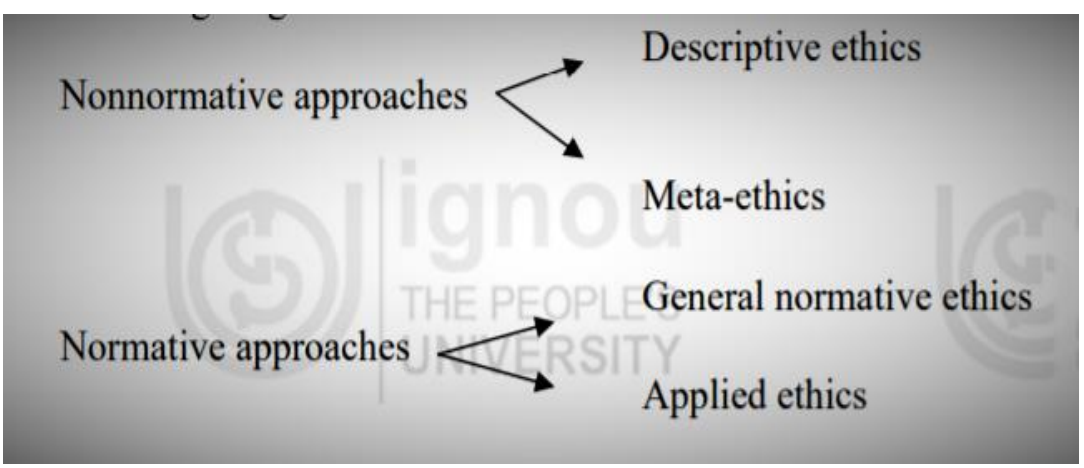
DIMENSIONS OF ETHICS

- There are four broad areas of ethical study. This sub categorization in ethics should be clearly understood in order to place oneself in right footing.
    1. **Meta-ethics -** Focuses on the meaning of ethical terms themselves (for instance, 'what is goodness?'), and on questions of how ethical knowledge is obtained (for instance, 'how can I distinguish what is good from what is bad?'), rather than on the more applied question of 'what should I do in a particular situation?'. Meta-ethics is therefore concerned

with the nature of ethical properties, statements, attitudes and judgments. Meta-ethics examines such themes as what moral questions mean, and on what basis people can know what is 'true' or 'false'.

2. **Normative ethics -** In contrast, is the study of ethical acts. It therefore focuses explicitly on questions of 'what is the right thing to do?' in general. Normative ethics is concerned with questions of what people ought to do, and on how people can decide what the 'correct' moral actions to take are.
3. **Applied ethics -** Is concerned with how people can achieve moral outcomes in specific situations. Therefore, it is concerned with the philosophical examination of particular – and often complex – issues that involve moral judgments. Areas such as bioethics, environmental ethics, development ethics and business/corporate ethics may be regarded as areas of applied ethics. (The distinction between normative and applied ethics, however, is becoming increasingly blurred.)
4. **Descriptive ethics** - Can broadly be thought of as the study of morality and moral issues from a scientific point of view. It can be thought of as the branch of ethics that attempts to develop conceptual models and test those models empirically in order to enhance our understanding of ethical or moral behavior, moral decision making, and more broadly moral phenomena. This area or branch of ethics might also be referred to as behavioral ethics. Descriptive or behavioral ethics, then, describes and explains moral behavior and phenomena from a social science perspective or framework.

- However, the lines are blurred between normative, descriptive and applied ethics. A broader classification can be found Tom L. Beauchamp's book *Philosophical Ethics: An Introduction to Moral Philosophy* which presents them with the following diagram:



- The non-normative approaches examine morality without concern for making judgements as to what is morally right or wrong. They do not take any moral position regarding moral issues. The normative approaches instead make judgements as to what is morally right or wrong. They take a clear moral position regarding moral issues
- Among the two non-normative approaches to ethics, descriptive ethics describe and sometimes try to explain the moral and ethical practices and beliefs of certain societies and cultures. This is what sociologists, anthropologists, and historians often do in their study and research. In their descriptions they do not make judgements about the morality of the practices and beliefs but simply describe the practices observed in the different groups or cultures.
- Meta-ethics focuses on the analysis of the meanings of the central terms used in ethical reasoning and decision-making. It attempts to answer questions of meaning.GS Paper-IV is not concerned with meta-ethics per se.
- An interplay of normative, descriptive and applied ethics is more prominent. Moreover, applied ethics in form of ethics in public administration is to be particularly emphasised.

ETHICS IN PUBLIC AND PRIVATE RELATIONSHIPS

- A human being engages in various dimensions in his life term. One categorization for such engagement could be- socially, politically, religiously, etc. Another categorization may encapsulate the dichotomy of public and private engagement.
- For a civil servant, it becomes extremely important to maintain a sustained work-life balance by proper management and regulation of public and private relationships. Not only does it offer complete justice to his/her position in Public Administration but also it helps to allocate adequate efforts for nurturing private relations. The latter in particular is crucial for emotional support and personality development. Thus, ethics in public and private relationships becomes an important aspect of Civil Services.

What are public and private Relationships?

- A private relation is one in which an individual shares a bond characterised by intimate and emotional experiences. These are informal and the individual relatively experiences a higher degree of autonomy and freedom. Notably, **Right to Privacy** is a fundamental right under Article 21 of the Constitution.
- Public relations are formal in nature guided by well-established and recognised institutions like state, organisations, universities, etc. There are formal ways of behaviour including acts of omission and commission.
- Consider the following examples:

ETHICS IN PUBLIC RELATIONSHIPS

- **Openness:** Public relationships require transparency in their dealings. All parties are expected to provide complete information on all matters to each other for the sake of fairness. Openness also increases confidence of parties in each other. For instance, companies are expected to publish their annual reports with all their financial details for the shareholders.
- **Honesty and integrity:** Generally, it is expected that true information will be provided in public dealings without any errors or deception. Parties are also expected to remain true to their word and not break promises. For instance, in politics, promises given by politicians to people or other politicians must be kept or otherwise, they lose their credibility.
- **Respect:** Due respect and courtesy is expected in public relationships in accordance with conventions, code of conduct etc. For example, we should behave politely and respectfully with our neighbours, strangers on the road etc. in order to ensure a stable and harmonious social order.
- **Rule of law:** Parties in a public relationship must mutually abide by the law of the land and conduct their dealings accordingly. Rule of law is necessary to ensure equality and fairness among different entities and also to ensure justice in case of wrongdoing. For example, relationship between a consumer and seller is regulated by the Consumer Protection Act 1986.
- **Equality and uniformity:** In public relationships, one must treat everyone equally and uniformly. This is necessary to ensure a level playing field, fair competition, quality service etc. For example, civil servants must treat all individuals equally irrespective of their caste, class, religion etc.
- **Accountability:** In public dealings, we must hold ourselves accountable with same standards as we expect from others. Accountability is essential to enforcing the norms of public relationships. People want their administrators, politicians, industries to be accountable to them.

ETHICS IN PRIVATE RELATIONSHIPS

- **Love and care:** These emotions are the bedrock of private relationships and also sustain them. Such relationships are not driven by rules or quid pro quo but by human emotions. For instance, one can always find family by their side regardless of the circumstances.
- **Confidentiality:** Private relations require secrecy and privacy, as opposed to public relationships. It is required to maintain sanctity of the relationship. For example, politicians in India shy away from disclosing their personal lives to the public and keep it separate from professional life.
- **Truthfulness:** Private relations are based upon truth and trust. Since there are no rules and regulations, trust matters the most. Trust also strengthens the bonds in

private relationships. For instance, husband and wife expect each other to be truthful to each other above all else.

- **Responsibility:** Our private life often creates responsibility for us towards different people. This is because people have some emotional or practical expectations from each other. For example, spouses, friends etc. expect certain kinds of behaviour from each other. In some private relationships, there are social responsibilities which must be fulfilled. For instance, parents are responsible for the upbringing of their children.
- **Perseverance:** We must ensure stability and harmony in our private relations. This often requires persistent effort by both parties during the times of discord. For instance, spouses often get into fights after which they are expected to cooperate to preserve the relationship.

Challenges to Ethics in Private and Public Relationships

- **Corruption-** It pervades in almost all spaces. It not only rewards those who accept it but also punishes those who do not. It also causes moral, social and economic degradation. It appears that it offers an easy way out in an already divided society on lines of money, language, caste, religion, etc. It marked by serious ignorance, insensitivity, selfishness and lack of compassion, love and fraternity.
- **Challenging Working conditions-** Nature of civil services in general is challenging. There are numerable responsibilities by virtue of the public office one holds. One has to work and engage beyond general working hours, in different and alien regions.
- **Political Pressure-** In democracy bureaucracy shares an intimate and intricate relationship with the political party in power and its ideology. This creates myriad ways of approaching an issue and finding out a workable solution. This often creates pressure on bureaucracy in general and civil services in particular.
- **Lack of Effective Training in Emotional Intelligence-** Although emotional intelligence is a part of popular discourse yet it is not effective and adequate to sensitise officers in an inclusive manner. They find it very difficult to strike balance in their private and public relationships. Emotional Intelligence is very often taken for granted and just reduced to classroom discussions without realising its practical application.
- **Lack of Inclusive Dialogue on Ethical Conduct-** It is very often seen that ethics is taken to be subject of classroom study than an actual way of practically implementing it through actions and robust work culture. This may be due to lapses in pedagogical ways or lack of understanding about the effects and importance of ethics in private and public relationships. One should aggressively engage with questions like Why should I be moral?

Should there be separation of public and private relationships?

Arguments for:

- **Nature of aspects:** Private and public relationships are conducted in very different ways and hence, must be treated separately so that one can behave as per the context.
- **Established distinction:** Both public and private relationships must remain unaffected by the problems of the other. Private problems should not affect performance in public sphere. For instance, people expect public servants to be at their best regardless of problems in their private lives. Ups and downs in public relationships should not affect our behaviour in personal life. For instance, a police officer's work situation must not affect his behaviour at home.
- **Challenging amalgamation:** Mixing the two kinds of relationships often leads to certain problems. Entry of private relationships in public sphere leads to nepotism and favouritism. Entry of public relationships in private sphere undermine the sanctity, privacy and intimacy of private life. For instance, Mahabharata- conflict took place because Dhritrashtra mixed his public and private relationships. He let private relationship with his son affect his public decision making when he wanted his son to be the king despite being unworthy.
- **Societal perspective:** Society tends to judge people separately in their public and private sphere, and hence it's better to keep them separate. For instance, Mahatma Gandhi is respected as the 'Father of the Nation' but he is not judged for his troubled relationship with his own son.
- **Addressing conflicts of interest:** Keeping public and private relationships separate helps in preventing conflicts of interest. For instance, Ranjit Sinha, former CBI chief, met accused in a case at his residence (due to personal relations) and his integrity was questioned. This could have been avoided by separating public and private relationships.
- **Work life balance:** Sometimes public relationships are so complicated and intense in nature that they cannot be mixed with private relationships so as to maintain sanctity of private life. For example, politicians often keep their private lives separate from public as their public life is heavily scrutinised and criticized.

Arguments against:

- **Not feasible:** Public and private relationships often naturally overlap and mix with each other and hence, cannot be kept separate. For instance, the President of USA and his wife, the First Lady, are also in a crucial public relationship. Family life and married life of politicians is publicly discussed in USA.
- **Not desirable:** Rigid separation between public and private relationships might become counter-productive. The two types of relationships can be used to enrich each other. For instance, support from family and friends help people to excel professionally. Friends at workplace help people in staying motivated and satisfied.

- **Not manageable:** Treating public and private relationships differently may create confusion and mental stress for individuals. For instance, police officers who behave differently at work and home (toughly and nicely respectively) might face confusion and feel like hypocrites.
- **Not separable:** Some values and ethics are common to both public and private relationships and hence, both kinds of relations require similar behaviour. For example, honesty and politeness is desirable in both family and workplace.

***